



CHAPTER lxxxiii

An Act to make provision for the transfer of the Manchester Municipal College of Technology to the Manchester College of Science and Technology to make further provision in reference to the water undertaking of the Corporation and for the improvement health local government and finances of the city and for other purposes. [2nd August 1956.]

WHEREAS—

(1) On the petition of the lord mayor aldermen and citizens of the city of Manchester (in this Act called “the Corporation”) and of the Victoria University of Manchester Her Majesty on the twenty-ninth day of July nineteen hundred and fifty-five granted a charter constituting and founding a college with the name of “The Manchester College of Science and Technology” (in this Act called “the new college”):

(2) The said charter enables the new college to enter into an agreement with the Corporation for the incorporation in that college of the Manchester Municipal College of Technology (hereinafter called “the municipal college”) and the taking over of the rights property privileges and liabilities of the Corporation relating thereto and if necessary to promote a Bill in Parliament to confirm or carry out any such agreement:

(3) It is expedient that the municipal college should be incorporated in the new college and that the rights property privileges and liabilities of the Corporation relating wholly to the municipal college should be transferred to and vested in the new college as provided by this Act:

(4) By virtue of the Manchester Corporation Waterworks Act 1847 and divers other Acts the Corporation are the owners of waterworks and are empowered and required to supply water to the inhabitants of the said city and of a considerable area in the neighbourhood thereof and to supply water in bulk to various local authorities:

(5) It is expedient to amend certain provisions of the Manchester Corporation Act 1919 and to make further provision with respect to the water undertaking of the Corporation:

(6) It is expedient to make further provision for the improvement health local government and finances of the city:

(7) It is expedient that the other provisions contained in this Act be enacted:

(8) The purposes of this Act cannot be effected without the authority of Parliament:

(9) Estimates have been prepared by the Corporation for and in connection with the following purposes:— £

(a) Filtration and treatment of the Longden- dale supply (including covered service reservoirs at Godley and Audenshaw) the reconditioning and covering of two existing service reservoirs at Denton (No. 1 and No. 2) pumping plant and ancillary mains and works	2,000,000
(b) Reconstruction and covering of two existing service reservoirs (No. 1 and No. 2) at Prestwich and ancillary works	500,000
(c) Construction of a balancing and service reservoir at Lostock Bolton adjacent to the Thirlmere aqueduct and ancillary mains and works	750,000
(d) Construction of a covered service reservoir at Dunham Park Bowdon and ancillary mains and works	570,000

(10) The several works included in such estimates respectively are permanent works and it is expedient that the Corporation should be empowered to borrow money for those purposes as provided by this Act:

(11) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I

PRELIMINARY

1.—(1) This Act may be cited as the Manchester Corporation Act 1956. Short and collective titles.

(2) The Manchester Corporation Acts 1844 to 1954 and this Act may be cited jointly as the Manchester Corporation Acts 1844 to 1956.

2. This Act is divided into Parts as follows:—

Division of
Act into Parts.

Part I.—Preliminary.

Part II.—The Manchester College of Science and Technology.

Part III.—Water.

Part IV.—Movable dwellings and camping grounds.

Part V.—Finance and miscellaneous.

Part VI.—General.

3.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

(2) In this Act unless the subject or context otherwise requires—

“the Act of 1933” and “the Act of 1936” mean respectively the Local Government Act 1933 and the Public Health Act 1936;

“the appointed day” means such day as may be agreed upon in writing between the Corporation and the new college for the transfer of the municipal college to the new college;

“the city” means the city of Manchester;

“the Corporation” means the lord mayor aldermen and citizens of the city of Manchester;

“contravention” includes a failure to comply and “contravene” shall be construed accordingly;

“the council” means the council of the city;

“daily penalty” means a penalty for each day on which an offence is continued after conviction therefor;

“enactment” includes this Act and any public general or local Act order byelaw regulation or scheme for the time being in force within the city or any provision in any such Act order byelaw regulation or scheme;

PART I
—cont.

“ the town clerk ” “ the medical officer ” and “ the sanitary inspector ” mean respectively the town clerk the medical officer of health and any sanitary inspector of the city ;

“ the Minister ” means the Minister of Housing and Local Government ;

“ the municipal college ” means the Manchester Municipal College of Technology and all property real and personal and all rights and privileges which belong to or are vested in the Corporation wholly for the purposes of the municipal college ;

“ the new college ” means the Manchester College of Science and Technology.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

THE MANCHESTER COLLEGE OF SCIENCE AND TECHNOLOGY

Transfer of
municipal
college to
new college.

4.—(1) Subject to the provisions of any agreement between the Corporation and the new college the municipal college shall on the appointed day be transferred to and vest in the new college and accordingly all property real and personal of every description (including things in action) and all rights and privileges which immediately before the appointed day belonged to or were vested in or exercisable by the Corporation wholly for the purposes of the municipal college shall subject to the provisions of this Act be by virtue of this provision and without any conveyance transfer or other instrument transferred to and vested in and exercisable by the new college for the objects and purposes of the new college.

(2) Any property held by the Corporation by virtue of any deed will or other instrument which is allocated to any specific foundation or object of the municipal college shall if it is a foundation or object related to a purpose for which the new college is incorporated on the appointed day be transferred to the new college and be held on trust for and applied as far as possible to the same specific foundation or object of the new college as that for which such property was held in trust for and applied by the Corporation previously to the transfer.

Corporation to
complete etc.
extensions to
municipal
college.

5. The Corporation shall complete furnish and equip any extension to the municipal college which may on the appointed day be in the course of being made in pursuance of plans or proposals approved by the Minister of Education.

6.—(1) Subject to the provisions of any agreement between the Corporation and the new college as and from the appointed day all debts liabilities and obligations of the Corporation relating to the municipal college shall by virtue of this Act be transferred and attached to the new college and shall thereafter be discharged and satisfied by the new college.

PART II
—cont.

Transfer of
liabilities.

(2) For the avoidance of doubt and without prejudice to the generality of the foregoing provision it is hereby declared that the amounts which would but for the transfer of the municipal college to the new college have fallen on or after the appointed day to be debited in the accounts of the Corporation for—

(a) the repayment of any money advanced or to be advanced by the Corporation for purposes relating to the municipal college out of the consolidated loans fund established by the Corporation in accordance with the provisions of the Consolidated Loans Fund (Manchester) Scheme 1935 ; and

(b) the payment of interest on any such advances ; and

(c) the payment of any other expenditure apportioned or allocated under and in accordance with the provisions of that scheme to such advances ;

shall be paid by the new college to the Corporation at the time at which but for the transfer of the municipal college those amounts would have fallen to be debited in the accounts of the Corporation.

7. All agreements awards contracts deeds and other instruments and all actions and proceedings and causes of action or proceedings which immediately before the appointed day were existing or pending in favour of or against the Corporation so far as relates to the municipal college shall continue and may be carried into effect enforced and prosecuted by or in favour of or against the new college to the same extent or in like manner as if the new college instead of the Corporation had been party to or interested in the same respectively.

Saving for
agreements
deeds actions
etc.

8. As from the appointed day all professors and other members of and persons attached to or associated with the teaching staff of the municipal college and all other officers and servants of the Corporation wholly employed at or in connection with the municipal college shall be transferred to the new college and shall hold as nearly as practicable the same offices and places in the new college as they held in the municipal college immediately before the appointed day and upon the same terms and conditions unless and until the new college otherwise decide.

Saving for
existing
staff of
municipal
college.

PART II
—cont.Super-
annuation
of officers.

9.—(1) Any person who immediately before the appointed day was a contributor to the superannuation fund established by the Corporation in pursuance of the Manchester Corporation Act 1920 (hereinafter called "the superannuation fund") or a member of the Manchester Municipal Officers' Widows' and Orphans' Pensions Fund the trust deed of which was confirmed by the Manchester Corporation Act 1946 and who on the appointed day becomes an officer or servant of the new college shall continue to contribute to the superannuation fund or shall remain a member of the Manchester Municipal Officers' Widows' and Orphans' Pensions Fund (as the case may be) as long as he remains an officer or servant of the new college.

(2) It shall be lawful for the Corporation at the request of the new college to permit any officer or servant of the new college appointed after the appointed day to become a contributor to the superannuation fund as if he were an officer or servant of the Corporation.

Exemptions
for new
college.

10.—(1) Subsection (2) of section 87 of the Education Act 1944 (which provides that an assurance of land or of personal estate to be laid out in the purchase of land shall if the land or the income thereof is to be used for educational purposes be void unless the assurance or a copy thereof is sent to the Minister of Education within six months after the date on which the assurance takes effect) shall not apply to an assurance of land or personal estate to the new college.

(2) The Charitable Trusts Acts 1853 to 1939 shall not extend to property held for the general purposes of the new college.

Construction
of bequests in
favour of
municipal
college.

11. Any will deed or other document whether made or executed before or after the appointed day (including any will made before the appointed day by a testator living at that date) which contains any bequest gift or trust in favour of the Corporation for any purpose or object of the municipal college shall on and after the appointed day if the same relates to a purpose for which the new college is incorporated not being a purpose or object relating to instruction provided by the new college in pursuance of the provisions of section 12 (new college to provide certain facilities) of this Act or to the persons for whom such instruction is provided be read and have effect as if the new college were therein named instead of the Corporation.

New college
to provide
certain
facilities.

12.—(1) After the appointed day the new college shall continue to provide such courses of scientific and technological instruction as the Corporation may from time to time require in connection with the discharge of their duty and the discharge of the duties of other local education authorities under section

41 of the Education Act 1944 to the extent that such courses were being provided at the municipal college immediately prior to the appointed day.

PART II
—cont.

(2) Any facilities provided in pursuance of the provisions of this section shall be provided on such terms and conditions as may be agreed between the new college and the Corporation or other local education authority concerned as the case may be or in default of agreement as may be determined by the Minister of Education in consultation with the Chancellor of the Exchequer.

(3) If at any time after the appointed day the new college shall desire to be relieved of the obligation imposed by this section or desire to be relieved of that obligation with regard to one or more courses of instruction the Minister of Education may after consulting with the Chancellor of the Exchequer issue a direction in writing to that effect and thereupon the obligation shall cease as from the time or times stated in the direction:

Provided that the said Minister shall not issue a direction without first ascertaining the views of the Corporation and of any other local education authority concerned and no direction of the said Minister shall be effective without the concurrence of the Corporation until the Corporation are in a position themselves to provide the courses of instruction to which the direction relates in premises within the city built or provided for the purpose by the Corporation in so far as the Corporation or the other local education authority or authorities for whose students those courses are being provided still require them to be provided.

13.—(1) The Corporation and the new college may enter into and carry into effect agreements for and with respect to the purposes of this Part of this Act. Power to enter into agreements.

(2) Without prejudice to the generality of subsection (1) of this section the Corporation may under any such agreement and on such terms and conditions as may be specified therein—

- (a) provide facilities and services on behalf of the new college;
- (b) lend money to the new college for and in connection with the attainment of the purposes and objects of the new college.

PART III

WATER

14. Section 118 (Supply in bulk) of the Manchester Corporation Act 1919 shall have effect and as from the first day of June nineteen hundred and fifty-five shall be deemed to have had effect as set out in the First Schedule to this Act: Amendment of section 118 of Manchester Corporation Act 1919.

PART III
—cont.

Provided that the mayor and aldermen and burgesses of the Borough of Bolton the mayor and aldermen and burgesses of the Borough of Wigan the Adlington Urban District Council the Leyland Urban District Council the Bowland Rural District Council and the Accrington District Water Board may or any of them may if they so determine by notice in writing addressed to and served upon the town clerk on or before the thirty-first day of December nineteen hundred and fifty-six elect that this section shall not apply to them and thereupon the said section 118 as enacted in the Manchester Corporation Act 1919 shall continue to apply to them as from the first day of June nineteen hundred and fifty-five as if this section had not been enacted except that in subsection (4) of that section as so enacted for the references therein to five per centum there shall be substituted references to the average rate per centum as defined in subsection (17) of section 118 as set out in the First Schedule to this Act and paragraph (ii) of the proviso to subsection (4) of that section as so enacted shall be omitted therefrom.

Byelaws as
to testing etc.
of water
fittings.

15.—(1) In addition to the powers of the Corporation to make byelaws under section 17 of the Water Act 1945 the Corporation may in connection with the supply and use of water within the water limits make byelaws—

- (a) as to the testing and stamping of taps cocks valves ferrules flushing cisterns and other similar apparatus prior to the installation thereof;
- (b) prescribing charges for such testing and stamping;
- (c) prescribing in connection with supplies by measure—
 - (i) the size construction and drainage of meter pits and the type size and strength of meter boxes;
 - (ii) the limits of inaccuracy of meters and the estimation of consumption where meters are found to be defective;
 - (iii) the method to be used and the charges to be made for testing the accuracy of meters.

(2) Subsections (3) and (4) of section 17 and sections 19 and 20 of the Water Act 1945 shall apply to byelaws made under this section as they apply to byelaws made under the said section 17.

(3) Any person who forges or counterfeits any stamp or mark used by the Corporation in pursuance of this section or uses or supplies any water fitting marked with any such stamp or mark knowing it to be forged or counterfeited shall be liable to a penalty not exceeding twenty pounds.

(4) In this section the expression “water limits” means the limits within which the Corporation are for the time being authorised to supply water.

PART IV

MOVABLE DWELLINGS AND CAMPING GROUNDS

16. In this Part of this Act unless the context otherwise requires—

Interpretation
of this Part
of Act.

“camping ground” means any area of land occupied or intended for occupation by movable dwellings ;

“movable dwelling” includes—

- (a) any tent ;
 - (b) any structure capable of being moved from place to place ; and
 - (c) any van cart carriage truck tramcar railway-carriage motor-car caravan trailer omnibus or other vehicle ;
- used or intended to be used for the purpose of human habitation (whether temporarily or otherwise) but does not include—
- (i) any tent structure or vehicle temporarily used by shepherds labourers or other persons for farming agricultural or other like purposes or in connection with building operations ;
 - (ii) any tent structure or vehicle temporarily used for the service of the Corporation or other public authority ;
 - (iii) any vessel as defined in section 742 of the Merchant Shipping Act 1894 ;
 - (iv) any shelter provided for the treatment of tuberculosis or used in connection with an open air school ;
 - (v) any vehicle used by the British Transport Commission in connection with the maintenance and repair of their undertaking ; or
 - (vi) any tent structure van or similar vehicle belonging to any statutory undertakers and any trailer drawn by such van used by those undertakers for the purposes of their undertaking ;

“occupier” in relation to a movable dwelling shall be deemed to include the owner of such dwelling or any person in charge thereof.

17.—(1) No movable dwelling shall be placed or kept on any land situate within the city without the previous consent of the Corporation.

Prohibition of
movable
dwellings
without
consent.

(2) It shall not be lawful for any person without the previous consent of the Corporation to let or permit to be used any land

PART IV
—cont.

so situate for occupation by any movable dwelling unless to the satisfaction of the Corporation—

- (i) the surface of the land is covered with concrete or other suitable material ; and
- (ii) the land is provided with sufficient roads sanitary accommodation drains and sewers, and is furnished with a separate supply of water.

(3) Where under subsection (1) or subsection (2) of this section an application is made to the Corporation for their consent the Corporation shall be deemed to have withheld their consent unless within four weeks from the receipt of the application they give notice to the applicant stating that such consent is granted :

Provided that where the consent of the Corporation is deemed to have been withheld under this subsection the following provisions shall have effect :—

- (a) The Corporation shall by notice inform the applicant that their consent is deemed to have been withheld and of his right of appeal under this section ;
- (b) Subject to the provisions of paragraph (c) of this proviso for the purpose of subsection (4) of this section the notice served under paragraph (a) of this proviso shall be deemed to be a notice of the withholding of the Corporation's consent ;
- (c) If in the notice served under paragraph (a) of this proviso the Corporation inform the applicant that his application is being further considered by them the time within which any appeal against the withholding of consent to such application may be brought shall be fourteen days from the date on which notice of the council's decision after such further consideration is served on the applicant.

(4) (a) Any person aggrieved by the withholding by the Corporation of their consent under the provisions of this section may appeal to a magistrates' court.

(b) The procedure shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(c) Subject to the provisions of paragraph (c) of the proviso to subsection (3) of this section the time within which any such appeal may be brought shall be fourteen days from the date on which notice of the withholding of the Corporation's consent was served upon the person desiring to appeal and for the purposes of this paragraph the making of the complaint shall be deemed to be the bringing of the appeal.

(d) The document notifying the person concerned of the withholding of the Corporation's consent shall state the right of appeal to a magistrates' court and the time within which such appeal may be brought.

(e) The Corporation and any person aggrieved by any decision of a magistrates' court under this subsection may appeal to quarter sessions.

(5) Any person offending against the provisions of this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

(6) No proceedings shall be taken in respect of a contravention of the provisions of this section in relation to a movable dwelling placed or kept on land immediately before the passing of this Act—

- (a) until the expiration of a period of four weeks after the passing of this Act ; or
- (b) if within the said period an application is made under this section for the consent of the Corporation in relation to such movable dwelling until the applicant is informed of the decision of the Corporation thereon and if consent is withheld during such further time as is provided under subsection (4) of this section.

18.—(1) Where it appears to the Corporation—

- (a) that a movable dwelling is in such a state or so overcrowded as to be prejudicial to the health of the inmates ; or
- (b) that by reason of the absence of proper sanitary accommodation or otherwise the use of a movable dwelling gives rise whether on the site or on other land to a nuisance or to conditions prejudicial to health ; or
- (c) that in connection with the use of a movable dwelling
 - (i) no suitable provision is made for the disposal of refuse or offensive matter or liquid or (ii) a supply of wholesome water in a suitable and readily accessible place is not available ; or
- (d) that the amenities of any part of the city are prejudicially affected by conditions arising from any movable dwelling or movable dwellings in the city ; or
- (e) that annoyance is caused to the residents in or visitors to any part of the city by reason of the noisy indecent or other offensive conduct of the occupiers of or persons frequenting any movable dwelling or movable dwellings in the city ;

Court may prohibit movable dwellings in certain areas.

PART IV
—cont.

the Corporation may make complaint to a magistrates' court and the court may by order—

- (i) require the removal by the occupier or occupiers thereof within such period as may be prescribed by the order of the movable dwelling to which the complaint relates; and
- (ii) prohibit the use for human habitation of the movable dwelling to which the complaint relates at such places or within such area as may be specified in the order.

(2) The Corporation and any person aggrieved by any order made by a magistrates' court under subsection (1) of this section may appeal to quarter sessions.

(3) (a) Any occupier of a movable dwelling who fails to comply with any order of the court made under subsection (1) of this section requiring the removal of a movable dwelling within the period prescribed by the order shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds and the Corporation may themselves at any time after the expiration of the said period enter on the land and remove the movable dwelling and recover the expense of so doing from the occupier or occupiers.

(b) Any person who places or retains any movable dwelling in contravention of any order of the court made under subsection (1) of this section prohibiting any movable dwelling being used for human habitation at such place or within such area as may be specified in the order shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds and the Corporation may themselves enter on the land and remove the movable dwelling in respect of which the offence has been committed and recover the expense of so doing from the person guilty of the offence.

**Byelaws as to
camping
grounds.**

19.—(1) The Corporation for the purpose of securing the amenities of the city in relation to the use of camping grounds and movable dwellings situated thereon may make byelaws—

- (a) for preventing the amenities of the city from being prejudicially affected by the state or condition of any such camping ground;
- (b) for securing the good and orderly conduct of persons frequenting any such camping ground and of the occupiers of the movable dwellings situate thereon;
- (c) for preventing annoyance to the residents in or visitors to the city by the conduct of the occupiers of or persons frequenting movable dwellings situate on any such camping ground.

(2) As respects byelaws made under this section the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister.

PART IV
—cont.

20. Nothing in this Part of this Act shall apply to—

Saving from
this Part of
Act.

- (a) a movable dwelling which is kept by its owner on land occupied by him in connection with his dwelling-house and is used for habitation only by him or by members of his household ; or
- (b) a movable dwelling which belongs to a person who is the proprietor of a travelling circus roundabout amusement fair stall or store (not being a pedlar hawker or costermonger) and which is regularly used by him in the course of travelling for the purpose of his business ; or
- (c) a movable dwelling which is not in use for human habitation and is being kept on premises the occupier of which permits no movable dwellings to be kept thereon except such as are for the time being not in use for human habitation ; or
- (d) a movable dwelling used for recreational or instructional purposes so long as it is so used and is not used as a sole or principal means of habitation ; or
- (e) the use of land—

(i) for camping purposes ; or

(ii) for the keeping of a movable dwelling ;

by a member of any organisation which holds a certificate of exemption granted by the Minister under subsection (6) of section 269 of the Act of 1936 or to the keeping and use of a movable dwelling by a member of any such organisation.

For the purpose of this paragraph the expression “member” in relation to any such organisation includes a member of any branch or unit of or formed by the organisation.

21. Except in so far as may be necessary for the purpose of giving effect to paragraph (e) of section 20 (Saving from this Part of Act) of this Act section 269 of the Act of 1936 shall cease to apply to the city.

Section 269
of Act of 1936
shall not to apply
to city.

PART V

FINANCE AND MISCELLANEOUS

22.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes

Power to
borrow
to borrow.

PART V
—cont.

mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall repay any sum so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table:—

1.	2.	3.
Purpose	Amount	Period for repayment calculated from the date or dates of borrowing
(a) Filtration and treatment of the Longdendale supply (including covered service reservoirs at Godley and Audenshaw) the reconditioning and covering of two existing service reservoirs at Denton (No. 1 and No. 2) pumping plant and ancillary mains and works...	£2,000,000	Sixty years.
(b) Reconstruction and covering of two existing service reservoirs (No. 1 and No. 2) at Prestwich and ancillary works	£500,000	Sixty years.
(c) Construction of a balancing and service reservoir at Lostock Bolton adjacent to the Thirlmere aqueduct and ancillary mains and works	£750,000	Sixty years.
(d) Construction of a covered service reservoir at Dunham Park Bowdon and ancillary mains and works	£570,000	Sixty years.
(e) The payment of the costs charges and expenses of this Act	The sum requisite	Five years.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

Saving for
powers of
Treasury.

23. It shall not be lawful to exercise the powers of borrowing conferred by this Act (except the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

24. Section 70 (Use and investment of superannuation fund) of the Manchester Corporation Act 1920 shall have effect as if the following were substituted for subsection (2):—

PART V
—cont.

Investment of
superannua-
tion fund.

“(2) So much of the superannuation fund as shall not be required to meet payments arising in pursuance of this Part of this Act and as shall not be used in manner provided by subsection (1) of this section shall be invested—

- (a) in or upon any investments authorised by section 1 of the Trustee Act 1925 but without the limitations imposed by the proviso in subsection (1) of section 2 of the said Act or in or upon any other investments for the time being authorised by law for the investment of trust funds ; or
- (b) in or upon any of the stocks funds or securities of any dominion commonwealth union dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part thereof respectively ; or
- (c) in or upon any of the stocks bonds mortgages or securities of any municipality county or district council or local or public authority or board in the United Kingdom or any such dominion commonwealth union dependency colony province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or the legislature concerned to issue the same ; or
- (d) in or upon any stocks shares bonds mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the United Kingdom government or by the government of any such dominion commonwealth union dependency colony province or state as aforesaid ; or
- (e) in or upon the bonds debentures debenture stock mortgages obligations or securities or the guaranteed or preference or ordinary stock or shares or ordinary preferred or deferred or other stock or shares of any company incorporated under any general Act of the United Kingdom Parliament being stock or shares which are at the time of making the investment quoted on the London Stock Exchange ; or
- (f) in the purchase of freehold ground rents or freehold or leasehold land messuages tenements and

PART V
—cont.

hereditaments within the United Kingdom provided that as regards leaseholds the term thereof shall have at least sixty years to run ; or

- (g) upon the security of freehold property freehold ground rents land charges or rent-charges by way of first mortgage up to the limit of two-thirds of the value ;

with the like power of varying such investments from time to time by sale and reinvestment or otherwise :

Provided that no investment shall be made under the powers of paragraph (e) of this subsection—

- (i) unless the company shall have paid interest or dividends thereon (as the case may be) at the rate of at least five per centum per annum for not less than four years prior to the date of investment ; and
- (ii) so long as the value of all the investments made under the said paragraph (e) which form part of the superannuation fund equals or exceeds one-quarter of the total value of the assets of that fund.”

Supply of
water to
premises
where supply
cut off.

25.—(1) Where an occupied house in the city has ceased to be supplied with water sufficient for the domestic purposes of the occupants by reason of the absence or defective state of a service pipe or the cutting off of the supply of water through that pipe or the absence or defective state of any fittings the Corporation may without prejudice to any action or proceedings which they may take under any other enactment repair or renew the pipe or execute such works and provide or repair such fittings and do such other things as they may consider necessary to secure that the supply of water to the house is restored and may recover the expenses reasonably incurred by them in so doing from the owner of the house.

(2) In any proceedings for the recovery of expenses under the preceding subsection the court may inquire whether the whole or any part of the expenses should instead of being borne by the person from whom they are sought to be recovered be borne by the occupier of the premises in respect of which they were incurred and the court may make such order as appears to it to be just in the circumstances of the case with respect to the person (being either the person from whom the expenses are sought to be recovered or such an occupier as aforesaid) by whom the expenses are to be borne or as to the apportionment between any such persons of their liability to bear the expenses :

Provided that the court shall not under this subsection order the expenses or any part thereof to be borne by any person

other than the defendant in the proceedings unless the court is satisfied that that other person at the instance of the defendant has had due notice of the proceedings and an opportunity of being heard.

PART V
—cont.

(3) (a) Where two or more houses in the occupation of different persons being houses supplied with water by a common pipe belonging to the owners or occupiers of those houses or some of them have ceased to be supplied with water sufficient for the domestic purposes of the occupants by reason of the defective state of the pipe or the cutting off of the supply of water through that pipe the Corporation may if they think fit repair or renew the pipe or execute any other works as they may consider necessary to secure that the supply of water to any such houses is restored and may recover any expenses reasonably incurred by them in so doing from the owners or occupiers of the houses in such proportions as may be determined by the Corporation or in case of dispute by a magistrates' court.

(b) Nothing done under this subsection shall prejudice or affect the rights and obligations as between themselves of the owner and the occupier of any house.

(4) The powers and functions of the Corporation under the foregoing provisions of this section may be exercised by the medical officer or the sanitary inspector.

(5) The Corporation may if they think fit themselves bear the whole or any part of any expenses recoverable by the Corporation under this section.

26.—(1) Notwithstanding the provisions of section 25 Registrar and (Qualification and Duties of Registrar) and section 26 (Registrar deputy registrar of court of record may appoint Deputy) of the Salford Hundred Court of Record Act 1868 the registrar of the court and any deputy registrar shall be either a barrister-at-law or a solicitor and the provisions of the said Act and any other enactments relating to the court shall be construed accordingly.

(2) In this section the expression "the court" means the Court of Record for the Hundred of Salford as constituted by the Salford Hundred Court of Record Acts 1868 and 1911.

27.—(1) Any condition attached to a consent given by the Corporation (whether before or after the passing of this Act) in pursuance of a trade effluent notice served upon them under section 2 of the Act of 1937 which requires the payment to the Corporation of a charge for the reception of trade effluent into a public sewer and for the disposal thereof may be modified by the Corporation by the substitution from a date to be specified of such new or altered payment or charge as the Corporation think fit to impose: Charges for reception and disposal of trade effluent.

PART V
—cont.

Provided that any such modification shall be of no effect if and so far as the condition as modified—

- (a) is a condition which the Corporation could not lawfully have attached to a consent under the Act of 1937; or
- (b) is inconsistent with any byelaws made by the Corporation under the Act of 1937 and for the time being in force.

(2) If the Corporation under subsection (1) of this section modify a condition attached to a consent given by them in pursuance of a trade effluent notice they shall before the date specified in pursuance of the said subsection (1) give notice of such modification to the occupier of the premises to which such trade effluent notice relates.

(3) Subject to any necessary adaptations section 3 of the Act of 1937 shall apply to the modification of any condition by the Corporation under this section as it applies to a condition attached to the consent of a local authority under section 2 of the Act of 1937 and notwithstanding anything contained in this section or in the Act of 1937 any appeal by a person aggrieved under the said section 3 of the Act of 1937 as applied by this section may extend to any of the matters referred to in the said section 3.

(4) The provisions of section 3 of the Act of 1937 shall also apply to the modification of any condition attached to a consent given by the Corporation (whether before or after the passing of this Act) in pursuance of a trade effluent notice served upon them under section 2 of the Act of 1937 proposed by a person aggrieved on the ground that the condition should be modified having regard to the reduced expense (if any) incurred or likely to be incurred by the Corporation in connection with the reception or disposal of trade effluent.

(5) Any condition as modified under this section may be further modified from time to time in accordance with the provisions of this section so long however as a period of three years has elapsed since the date of the consent or the date of the last modification (if any).

(6) Where by virtue of this section a condition is modified then for the purposes of sections 1 and 2 of the Act of 1937 the condition as so modified shall be deemed to have been duly imposed by the Corporation under section 2 of the Act of 1937.

(7) In determining whether or not a condition shall be modified in accordance with the provisions of this section regard shall be had to the expenditure incurred or likely to be incurred by the Corporation in connection with the reception or disposal of trade effluent.

(8) Where the sewer of a local authority (other than the Corporation) into which trade effluent is received discharges whether directly or indirectly through the sewer or sewers of another local authority into any sewer or sewage disposal works of the Corporation the preceding provisions of this section shall with the necessary modifications apply to and be exercisable by that authority or by any person aggrieved in respect of any consent given by the authority (whether before or after the passing of this Act) in pursuance of a trade effluent notice served upon them under section 2 of the Act of 1937.

PART V
—cont.

(9) In this section the expression—

“the Act of 1937” means the Public Health (Drainage of Trade Premises) Act 1937; and

“trade effluent notice” has the same meaning as in section 2 of the Act of 1937.

PART VI

GENERAL

28.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section the expression “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

29. Proceedings in respect of an offence created by or under this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation. Restriction on right to prosecute.

30. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act. Protection of members and officers of Corporation from personal liability.

31.—(1) The sections of the Act of 1936 mentioned in Part I of the Second Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act. Application of general provisions of Act of 1936.

PART VI
—cont.

(2) The sections of the Act of 1936 mentioned in Part II of the said Second Schedule shall have effect as if references therein to that Act included a reference to the following Parts of this Act that is to say:—

Part III (Water);

Part IV (Movable dwellings and camping grounds);

Part V (Finance and miscellaneous).

Costs of Act.

32. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

SCHEDULES

FIRST SCHEDULE

MANCHESTER CORPORATION ACT 1919 SECTION 118

118.—(1) Before commencing the construction of any instalment of **Supply in bulk.** Works Nos. 1 3 5 7 to 10 (inclusive) 12 13 and 16 by this Act authorised the Corporation shall give to the Minister of Housing and Local Government and to the respective councils of the administrative counties of Chester Cumberland Lancaster Westmorland and the West Riding of the county of York and of the county boroughs of Bolton Burnley Oldham Rochdale Stockport and Wigan (hereinafter referred to as "the councils") notice in writing (in this section referred to as a "construction notice") of their intention describing the works proposed to be constructed and stating in the case of the first construction notice the estimated average daily yield of water of such instalment and of the Lake District undertaking respectively when such instalment shall have been completed and in the case of any subsequent construction notice the estimated average daily yield of the instalment of works described in such notice and of the Haweswater undertaking respectively when the instalment of works described in such last-mentioned notice shall have been completed and within twenty-one days thereafter the Corporation shall publish a copy of such notice once in the London Gazette and once in each of two successive weeks in a newspaper published in the city and also in a newspaper published in each of the counties of Chester Cumberland Lancaster Westmorland and York.

(2) Subject to the provisions of this section any local authority authorised to supply water any part of whose district is situate within five miles from the Thirlmere Aqueduct or within five miles from the line of the Haweswater Aqueduct as delineated on the deposited plans or adjoins the water limits and any local authority who have no other available water supply and any part of whose district is situate within the immediate neighbourhood of either of the said distances of five miles and any joint water committee or joint water board of two or more of such local authorities may on giving at least one year's notice thereof in writing (in this section referred to as a "reservation notice") require the Corporation to reserve for them on and after a date (which shall not be earlier than twelve months after the giving of the reservation notice) specified in such reservation notice or on and after the date of completion of any instalment of works then in course of construction the daily quantity of water specified in such notice:

Provided that—

- (a) no reservation notice shall be effective unless the local authority committee or board giving such notice obtain the assent thereto of the Minister of Housing and Local Government within six months after the date of such notice and before giving his assent to any such notice the said Minister shall consult the councils and shall take into consideration the circumstances of the case (including the possibility of the local authority committee or board developing or

1st SCH.
—cont.

utilising other sources of water supply) and any representations which may be made by the Corporation or any other local authority committee or board as to such notice and unless the Corporation agree in writing the Minister shall not assent to a reservation notice—

(i) if that reservation notice is the first reservation notice given by the local authority committee or board or if it would result in the total quantity of water reserved to the authority committee or board on the date at which that reservation notice becomes effective bearing a greater proportion to the estimated average daily yield of the Haweswater undertaking at that date than the proportion which the quantity of water reserved under a previous reservation notice or notices by that authority committee or board bore to the estimated average daily yield of the Haweswater undertaking at the date when the last previous reservation notice became effective or the date of the completion of the last completed instalment of works whichever shall be the later ; and

(ii) in either of those circumstances if in addition the assent of the Minister would result in the aggregate daily quantity of water reserved for all authorities committees and boards under this section or under this section as originally enacted (but including for this purpose only one-half of the daily quantity of water reserved under reservation notices given before the first day of January nineteen hundred and forty-eight) exceeding one-fourth of the estimated average daily yield of the Haweswater undertaking at the date on which such aggregate daily quantity of water would become effectively reserved ;

(b) the Minister shall have power to assent to any reservation notice in respect of any less quantity of water than that originally specified therein and if he does that reservation notice shall be effective in respect of the less quantity only but in such case the authority committee or board by whom such reservation notice was served may withdraw the same within three months after the decision of the Minister with respect thereto ;

(c) if at any time within twelve months after a construction notice shall have been given by the Corporation any of the local authorities committees and boards who have served on the Corporation reservation notices under this section by notice in writing to the Corporation and to each other dispute the accuracy of the estimate of the average daily yield of water of any works stated in such construction notice or the Corporation desire to amend such estimate and give notice of such desire to each of the said local authorities committees and boards the question of such yield shall be referred to arbitration and the estimated average daily yield of water of such works shall for the purposes of this section and as between the Corporation and all the local authorities committees and boards respectively be that determined by the arbitrator ;

If upon any such reference it be determined that the estimated average daily yield of water in question is other than the estimate thereof made by the Corporation then any local authority committee or board who have served a reservation notice may amend such reservation notice within three months after the award of the arbitrator and the preceding paragraphs of this subsection shall apply to the reservation notice as amended.

1st SCH.
—cont.

Hereafter in this section any local authority committee or board who have served on the Corporation a reservation notice to which the Minister of Housing and Local Government has signified his assent are referred to as an "authority" and all the local authorities committees and boards who have served on the Corporation reservation notices to which the Minister of Housing and Local Government has signified his assent are together referred to as "the authorities".

(3) The Minister shall give notice to the Corporation of any assent which he may give to a reservation notice and within six months after the receipt of such a notice the Corporation shall inform the Minister and each of the councils of the authorities of the quantity of water then reserved for each authority and of the date or dates from which those quantities are reserved and those quantities shall thereafter be effectively reserved as from those dates.

(4) (i) Each authority for which a quantity of water is effectively reserved shall as from the first day of June nineteen hundred and fifty-five and each authority for which a quantity of water becomes effectively reserved shall as from the date when that quantity of water becomes effectively reserved pay to the Corporation each year an amount or amounts as follows:—

(a) for the period starting on the first day of June nineteen hundred and fifty-five and until the date when the works described in the third construction notice shall have been completed the appropriate proportion of—

(i) a sum equal to the average rate per centum of the total capital expenditure upon the Haweswater undertaking up to the end of the year for which the payment is being calculated including any sum paid out of capital before the first day of June nineteen hundred and fifty-five in respect of interest on capital but excluding any capital expenditure upon the construction of the works described in the third construction notice; and

(ii) the cost incurred in that year in maintaining and managing the Haweswater undertaking that cost to be apportioned for part of the year where appropriate;

(b) for the period starting with the date when the works described in the third construction notice shall have been completed and ending on the thirty-first day of March immediately following that date and for each year thereafter the appropriate proportion of—

(i) a sum equal to the average rate per centum of—

(a) the total capital expenditure upon the Haweswater undertaking up to the end of the year for which the payment is being calculated including

1st SCH.
—cont.

any sum paid out of capital before the first day of June nineteen hundred and fifty-five in respect of interest on capital but excluding the capital expenditure upon any instalment of works which has not been completed at the end of the year or part of a year for which the calculation is being made; and

(b) the aggregate of all the amounts which would have been expended by the Corporation out of capital in respect of interest on capital during the period of construction of the works described in the third and in each subsequent construction notice which shall have been completed prior to the year or part of a year for which the calculation is being made if the Corporation had in fact paid out of capital each year a sum equal to the average rate per centum of the total capital expenditure upon each of those instalments of works up to the end of each year during the periods of construction;

(ii) the cost incurred in the year for which the calculation is being made in maintaining and managing the Haweswater undertaking that cost to be apportioned for part of a year where appropriate:

Provided that if and whenever water becomes effectively reserved for an authority for the first time or an additional quantity of water becomes effectively reserved for an authority that authority shall pay to the Corporation on the date on which that quantity becomes effectively reserved in addition to the annual sums payable under the foregoing provisions of this subsection the following further amounts (if any shall be found to be payable):—

(a) if the total quantity of water reserved to that authority on that date represents a greater proportion of the estimated average daily yield of the Haweswater undertaking at that date than the proportion which the quantity of water reserved for that authority immediately prior to the thirty-first day of March nineteen hundred and fifty-six bears to twenty-five million gallons a day an amount shall be payable which shall be calculated by multiplying a fraction representing that increase of proportion by three million three hundred thousand pounds and deducting from the resultant figure any amount previously paid under this paragraph (a); and

(b) if the total quantity of water reserved to that authority on the date on which the quantity becomes effectively reserved represents a greater proportion of the estimated average daily yield of the Haweswater undertaking at that date than the proportion which the quantity of water effectively reserved to that authority at the date when the works described in the third construction notice were completed bears to the estimated average daily yield of the Haweswater undertaking at the last-mentioned date a further amount

shall be payable being the aggregate of the amounts calculated by multiplying a fraction representing that increase of proportion by a figure equal to the average rate per centum—

1ST SCH.
—cont.

(i) of the total capital expenditure upon the works described in the third construction notice up to whichever is the earlier of the following dates namely:—

(aa) the end of the year in which those works shall have been completed; or

(bb) the date when that quantity of water is effectively reserved or the average daily yield of those works shall have become fully committed whichever is the earlier (hereinafter called “the end date”); and also

(ii) (if the end date does not occur earlier than the end of the year in which those works shall have been completed) of the total capital expenditure upon those works up to the end of the following year or up to the end date whichever shall be the earlier to which capital expenditure shall be added the amount payable under (i) above; and also

(iii) (if the end date does not occur earlier than the end of that following year) of the total capital expenditure upon those works up to the end of the next following year or up to the end date whichever shall be the earlier to which capital expenditure shall be added the amounts payable under (i) and (ii) above;

together with such further amounts (if any) calculated in a similar manner in respect of the total capital expenditure upon the works up to the end of each succeeding year or part of a year (with corresponding additions to the capital expenditure) until the end date except that after an authority shall have made a payment in accordance with this paragraph (b) the provisions of this paragraph shall apply to that authority when an additional quantity of water is effectively reserved if and to the extent that the total quantity of water on the date on which the additional quantity is effectively reserved to that authority represents a greater proportion of the estimated average daily yield of the Haweswater undertaking at that date than the quantity of water effectively reserved to that authority at the date when it made the payment bore to the estimated average daily yield of the Haweswater undertaking at the last-mentioned date; and

(c) if the works described in a fourth or any subsequent construction notice shall have been completed a further amount or further amounts calculated in accordance with the provisions of the foregoing paragraph (b) substituting for references in that paragraph to the third construction notice references to the fourth and subsequent construction notices as the case may be.

1st SCH.
—cont.

(ii) Any payments made under the provisions of the proviso to paragraph (i) of this subsection shall be deemed to be initial qualifying capital sums within the meaning of that expression in section 8 of the Manchester Corporation Act 1954 and the amounts of any such payments shall be capital payments made by way of contribution towards the capital expenditure incurred by the Corporation for the purposes of their water undertaking.

(iii) The average daily yield of the works described in a construction notice shall be deemed to have become fully committed when in any year the average daily quantity of water supplied from the Lake District undertaking shall have exceeded the estimated average daily yield plus thirty-six million gallons a day or at the date when the works described in the next construction notice shall have been completed whichever shall be the earlier.

(iv) The date of completion of the works described in a construction notice shall be deemed to be the date upon which the whole of the additional average daily yield to be provided by those works becomes available as a continuous and reliable supply.

(v) Wherever the context so requires in making a calculation for the purposes of ascertaining an amount to be paid for a period of less than a year only that proportion of the average rate per centum shall be used as is equal to the proportion which the period bears to a whole year.

(5) Each authority shall be entitled to a supply of water from the Corporation as owners of the Lake District undertaking not exceeding such daily quantity as shall have been effectively reserved for that authority and the payments which are made to the Corporation pursuant to sub-paragraph (a) and sub-paragraph (b) of paragraph (i) of subsection (4) of this section shall be the consideration payable for that entitlement and shall be paid to and received by the Corporation as owners of the Lake District undertaking.

(6) No local authority or committee entitled to be supplied with water under section 81 or section 82 of the Act of 1879 shall be deemed to be an authority for any of the purposes of this section unless under and in accordance with the provisions of this section they serve on the Corporation a reservation notice for water in excess of the quantity with which they are for the time being entitled to be supplied under either of the first-mentioned sections and obtain the assent of the Minister of Housing and Local Government to such notice and then only in respect of the water required to be reserved in pursuance of such reservation notice in excess of such last-mentioned quantity.

(7) At the end of each quarter of a year ending on the thirtieth day of June the thirtieth day of September and the thirty-first day of December in any year for which any payment is to be made to the Corporation under subsection (4) of this section the Corporation shall deliver to each authority an estimate of the sum of money payable to the Corporation by such authority under this section for the year ending on the succeeding thirty-first day of March and such authority shall pay to the Corporation a sum equal to one-fourth of the amount of such estimate within twenty-eight days after the

delivery thereof and at the end of the quarter ending on the thirty-first day of March the Corporation shall deliver to each authority an account of the balance of the sum payable to the Corporation by such authority for such year and such balance shall be paid to the Corporation within twenty-eight days after the delivery of such account. If payment of any sum so payable to the Corporation shall not be made within twenty-eight days after the delivery of the estimate or account showing the same to be due the authority shall pay to the Corporation interest thereon from the expiration of the said period of twenty-eight days until payment at the rate of five per centum per annum and (unless any such estimate or account is bona fide disputed by the authority) it shall be lawful for the Corporation in case any such payment shall not be made within one month next after the expiration of the said twenty-eight days and after the service of a second notice or demand by the Corporation upon the defaulting authority to stop any supply of water then being given to the authority until such payment shall be made:

Provided that any amount so paid with respect to which a dispute shall have arisen and shall have been referred to arbitration shall be adjusted as soon as practicable after the date of the award of the arbitrator and in accordance with the terms of that award.

(8) The point at which and the aqueduct or works of the Corporation from which water shall be supplied to an authority under this section shall be determined by the Corporation and all works necessary for connecting the works of the authority with the aqueduct or works of the Corporation shall be executed by the Corporation at the authority's expense and for that purpose the Corporation may exercise the powers vested in the authority relating to the execution of waterworks.

(9) (a) Except as provided in paragraph (c) of this subsection any authority who require a supply of water to be reserved for them under the provisions of this section shall at their own expense provide a reservoir or storage tank through or into which all water is to be taken except that in certain conditions the Corporation or the arbitrator acting under paragraph (b) of this subsection in the case of any difference between the Corporation and the authority may waive the obligation to provide the reservoir.

(b) Any authority may appeal to an arbitrator to be appointed (failing agreement between the Corporation and such authority) by the President of the Institution of Civil Engineers against any determination by the Corporation under this subsection.

(c) Notwithstanding anything in paragraph (a) of this subsection if the daily quantity of water to be supplied—

(i) can and will at all times without such provision be taken from the mains of the Corporation in a continuous and substantially regular flow throughout the twenty-four hours of each day; or

(ii) is not sufficient to justify the expense of such provision; the Corporation may (and if so determined by the arbitrator mentioned in the foregoing paragraph (b) in case of difference between the Corporation and the local authority shall) waive the obligation to provide a reservoir or storage tank.

1st SCH.
—cont.

(10) For the maintenance testing cleaning alteration extension or repair of the waterworks of the Corporation they may after giving (except in cases of emergency) not less than fourteen days' notice to any authority affected temporarily discontinue the delivery of water to any authority for such a period or periods as may be reasonably requisite:

Provided that the Corporation shall make good to each authority to whom the delivery of water shall have been temporarily discontinued under the provisions of this subsection the aggregate quantity of water of which that authority were deprived by such discontinuance and such making good shall be effected at such times and in such manner as may be agreed between the Corporation and that authority or as failing such agreement shall be determined by arbitration.

(11) A supply of water under this section to an authority shall be given and received in a regular and continuous flow or manner and at an even rate (subject to any adjustment which may be necessary in order to give effect to the proviso to subsection (10) of this section) and the works of such authority shall be so constructed and maintained that the water shall at all times be capable of flowing from the aqueduct to such works in such manner as not to cause or require any increase of head in the aqueduct or in any other way to interfere with the free and unrestricted flow of water in the aqueduct:

Provided that where an authority has not provided a reservoir under the provisions of paragraph (a) of subsection (9) of this section any variation in the flow manner or rate of the supply due to variations in the demand of consumers in the district of the authority shall not prevent the supply being deemed to be given and received in a regular and continuous flow or manner and at an even rate for the purposes of this subsection but the quantity of water taken by any authority in any week shall not exceed seven times the quantity to which the authority are entitled in any one day.

(12) The Corporation shall not incur any liability in respect of a failure to supply water under this section in case such failure is due to frost unusual drought or other unavoidable cause or accident but in any such case the quantities of water from the Lake District undertaking to be supplied to the authorities and to be taken by the Corporation for supply within the water limits shall be reduced in proportion to the quantities to which they are respectively entitled.

(13) Nothing contained in this section shall extend the power of any authority to construct waterworks within the limits of supply of any other person empowered by Act of Parliament or by an order confirmed by Parliament to supply water.

(14) An authority receiving a supply of water under this section shall not be entitled to sell or dispose of such water or of any part of it to or for the benefit of any other than their own district except with the consent of the Minister of Housing and Local Government and upon such terms as he may deem reasonable:

Provided that nothing in this section shall prevent any authority from using without such consent as aforesaid for the purposes of any obligation or agreement subsisting at the passing of this Act water supplied to them under this section.

(15) The Corporation shall keep separate accounts of their receipts and payments on capital account and of their income and expenditure on revenue account of the Haweswater undertaking and such accounts shall at all reasonable times be open to the inspection of the authorities.

1st SCH.
—cont.

(16) The Corporation and any local authority committee or board may enter into and carry into effect agreements under their respective common seals with reference to the supply of water by the Corporation to such local authority committee or board and any agreement entered into in pursuance of this subsection shall have full force and effect.

(17) In this section—

“district” means the area comprised within the limits within which an authority are at the passing of this Act authorised to supply water in detail ;

“the Haweswater undertaking” means and includes the lands easements rights impounding and other reservoirs catchwaters aqueducts and all other works whatsoever for the time being acquired executed or constructed by the Corporation for impounding water in the county of Westmorland and conveying and supplying the same into the reservoirs of the Corporation at Woodgate Hill Heaton Park and Audenshaw including the said reservoir at Woodgate Hill but shall not include any part of the Thirlmere Aqueduct ;

“the Lake District undertaking” means and includes the lands easements rights impounding and other reservoirs catchwaters aqueducts and all other works whatsoever for the time being acquired executed or constructed by the Corporation for impounding water in the counties of Cumberland and Westmorland and conveying and supplying the same into the reservoirs of the Corporation at Woodgate Hill Prestwich Heaton Park and Audenshaw including all such reservoirs with the exception of the said reservoir at Heaton Park and the reservoirs at Audenshaw known as numbers 1 2 and 3 ;

“year” means a period of twelve months ending on the thirty-first day of March ;

“average rate per centum” means in relation to any year a rate per centum equal to the rate per centum which the amount apportioned in that year to the borrowing account of the waterworks undertaking of the Corporation pursuant to article 21 of the Consolidated Loans (Manchester) Scheme 1935 (as amended by subsequent schemes) bears to the outstanding advances to the waterworks undertaking ;

“the estimated average daily yield” means such quantity of water as it is estimated will be available as a reliable daily yield for supply purposes over a period of three consecutive years when the rainfall on the gathering grounds may be no more than eighty per centum of the long term average annual rainfall provided that in no circumstances shall the

1st SCH.
—cont.

quantity of water exceed the quantity which it is estimated can be delivered by so much of the works authorised by section 27 of the Manchester Corporation Act 1919 as may have been constructed at the material time and in relation to an instalment of works the expression "the estimated average daily yield" means the difference between the estimated average daily yield of the Haweswater undertaking when that instalment shall have been completed and the estimated average daily yield of the Haweswater undertaking before that instalment shall have been completed;

"the cost of maintaining and managing the Haweswater undertaking" shall include rates and taxes payable in respect thereof;

"appropriate proportion" means in relation to the period starting on the first day of June nineteen hundred and fifty-five and ending on the date when the works described in the third construction notice shall have been completed the proportion which the quantity of water which is effectively reserved for an authority bears to twenty-five million gallons a day and in relation to any period after the last-mentioned date means the proportion which the quantity of water which is effectively reserved for an authority bears to the estimated average daily yield of the Haweswater undertaking at the date on which the last-mentioned quantity of water is so effectively reserved.

(18) Any reference in this or in any other enactment to any work or works authorised by this Act or to the Haweswater Aqueduct shall be deemed to be a reference to that work or those works or the Haweswater Aqueduct (as the case may be) as amended varied or extended by the Manchester Corporation Waterworks Act 1921 the Manchester Corporation Act 1927 and the Manchester Corporation Act 1934.

SECOND SCHEDULE

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices etc.
284	Authentication of documents.
286	Proof of resolutions etc.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
302	Effect of decision of court upon an appeal.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

2ND SCH.
—cont.

SECTIONS APPLIED TO PARTS III IV AND V OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
292	Power to make a charge in respect of establishment expenses.
293	Recovery of expenses, etc.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint etc.
329	Saving for certain provisions of the Land Charges Act 1925.

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Table of Statutes referred to in this Act

Short title	Session and chapter
Manchester Corporation Waterworks Act 1847	10 & 11 Vict. c. 14.
Salford Hundred Court of Record Act 1868 ...	31 & 32 Vict. c. cxxx.
Public Health Act 1875	38 & 39 Vict. c. 55.
Merchant Shipping Act 1894	57 & 58 Vict. c. 60.
Salford Hundred Court of Record Act 1911 ...	1 & 2 Geo. 5 c. clxii.
Manchester Corporation Act 1919	9 & 10 Geo. 5 c. cxix.
Manchester Corporation Act 1920	10 & 11 Geo. 5 c. xcvi.
Manchester Corporation Waterworks Act 1921	11 & 12 Geo. 5 c. li.
Trustee Act 1925	15 & 16 Geo. 5 c. 19.
Land Charges Act 1925	15 & 16 Geo. 5 c. 22.
Manchester Corporation Act 1927	17 & 18 Geo. 5 c. ciii.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Manchester Corporation Act 1934	24 & 25 Geo. 5 c. xcvi.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Public Health (Drainage of Trade Premises) Act 1937	1 Edw. 8 & 1 Geo. 6 c. 40.
Education Act 1944	7 & 8 Geo. 6 c. 31.
Water Act 1945	8 & 9 Geo. 6 c. 42.
Ministers of the Crown (Transfer of Functions) Act 1946	9 & 10 Geo. 6 c. 31.
Manchester Corporation Act 1946	9 & 10 Geo. 6 c. xxxviii.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.
Manchester Corporation Act 1954	2 & 3 Eliz. 2 c. xlviii.

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